CONSTITUTION OF INDIA (COI)

(BNC501/ BNC601)

Unit 2-

Union Executive and State Executive: Powers of Indian Parliament , Functions of Rajya Sabha, Functions of Lok Sabha, Powers and Functions of the President, Comparison of powers of Indian President with the United States, Powers and Functions of the Prime Minister, Judiciary – The Independence of the Supreme Court, Appointment of Judges, Judicial Review, Public Interest Litigation, Judicial Activism, LokPal, Lok Ayukta, The Lokpal and Lok ayuktas Act 2013, State Executives – Powers and Functions of the Governor, Powers and Functions of the Chief Minister, Functions of State Cabinet, Functions of State Legislature, Functions of High Court and Subordinate Courts.

Powers of Indian Parliament

1. **Legislative Powers:** The Parliament makes laws for the entire country. Subjects are divided into three lists: Union, State, and Concurrent. In the Concurrent List, Parliament's law overrides state law.

2. **Executive Powers:** The government is responsible to Parliament for its actions. Parliament controls this through committees, question hour, and zero hour.

3. **Financial Powers:** Parliament approves the budget and monitors the government's financial activities through committees.

4. **Constituent Powers:** Parliament can amend the Constitution and make new laws.

5. **Judicial Powers:** Parliament can impeach the President, remove judges, and punish members for violations.

6. **Electoral Powers:** Parliament helps elect the President, Vice-President, and important officers like the Speaker and Deputy Speaker.

7. **Other Powers:** Parliament can discuss national and international issues, declare emergencies, change state boundaries, and create or abolish state legislatures.

Rajya Sabha (Council of States)

The **Rajya Sabha** is the Upper House of the Indian Parliament, with a maximum of 250 members.

•**238 members** represent States and Union Territories, while **12 members** are nominated by the President for their expertise in fields like art, science, and social service.
•The current strength is **245 members**.
•Rajya Sabha is a **permanent body** that doesn't dissolve, but one-third of its members retire every two years.
•Members serve **six-year terms** and can be re-elected.
•Members are elected by **State Legislative Assemblies** through proportional representation using a single transferable vote system.

Lok Sabha (House of the People)

The **Lok Sabha** is the lower house of Parliament in India, elected by the people through voting.

1. It can have up to **552 members**, including representatives from states and union territories.
2. The President can nominate **two members** from the Anglo-Indian community.
3. The number of seats for each state is based on its population.
4. Members serve for **five years**, unless the Lok Sabha is **dissolved** earlier.

Category	Rajya Sabha	Lok Sabha
Legislative	Equal power with Lok Sabha for ordinary laws; bills can be introduced here.	Dominant in law-making due to larger membership. Most bills are introduced here.
Financial	Cannot introduce money bills; only suggest changes to money bills, but Lok Sabha has the final say.	Superior in financial matters; can introduce money bills. Rajya Sabha can only delay money bills for 14 days.
Executive	Cannot dismiss the Council of Ministers.	Can dismiss the Council of Ministers by a vote of no-confidence.
Amendment	Can amend the Constitution with Lok Sabha by passing with a 2/3 majority.	Shares power to amend the Constitution with Rajya Sabha.
Electoral	Participates in the election of the President and Vice-President. Elects Deputy Chairman.	Participates in the election of the President and Vice-President. Elects Speaker and Deputy Speaker.
Judicial	Can impeach the President with Lok Sabha. Can remove judges of Supreme and High Courts, and Vice-President.	Can impeach President and judges, and discipline its own members.
Emergency Powers	Must approve any emergency declarations made by the President.	Must approve any emergency declarations made by the President. If dissolved during an emergency, Rajya Sabha approval is needed.

Powers and Functions of the President

Power	Details
Executive Powers	- Head of Union government. - Appoints key officials (PM, judges, etc.).
Legislative Powers	- Addresses Parliament sessions. - Summons or dissolves Lok Sabha. - Approves all laws.
Diplomatic Powers	- Represents India internationally. - Signs treaties (with Parliament approval).
Financial Powers	- Approves money bills. - Presents Union Budget. - Sets up Finance Commission.
Military Powers	- Supreme commander of the Armed Forces. - Declares war/peace (with Parliament).
Judicial Powers	- Appoints Chief Justice and judges.
Emergency Powers	- Declares emergencies: national, constitutional breakdown, or financial crisis.

Comparison of Powers of Indian President with the United States

Topic	US President	Indian President
How they are elected	Chosen directly by people	Chosen indirectly (not by people directly)
Advantage	Stable government, no coalition problems	Can face issues from coalition politics
Head of	Head of both country and government	Only head of the country (symbolic role)
Power	Real power to make decisions	Mostly a figurehead, not much real power
Term length	4 years, can only be re-elected once	5 years, can be re-elected many times

Powers and Functions of the Prime Minister

The Prime Minister is the head of the Indian government and is appointed by the President after a party wins the general election.

Power/Role	What it Means
Leader of the Country	Main leader of the government.
Assigns Minister Jobs	Decides which ministers handle what.
Leads Cabinet Meetings	Runs meetings with top ministers.
Represents India Abroad	Attends international meetings.
Connects President and Cabinet	Shares decisions with the President.
Main Advisor to President	Gives advice to the President.
Can Remove Ministers	Can recommend a minister's dismissal.
Can End Government	Resigning can collapse the government.

Judiciary

Appointment of Judges	Qualifications	Procedure
District Courts	1. Advocate for 7+ years.	1. Consult Governor and High Court judges (Article 233).
	2. Not in other Union or State services.	2. High Courts control district court judges (Article 235).
	3. Recommended by the High Court.	
High Courts	1. Citizen of India.	1. Appointed by President's warrant (Article 217).
	2. Held a judicial office in India for 10+ years.	2. Consult Chief Justice of India and State Governor.
	3. Advocate in High Court for 10+ years.	3. Consult Chief Justice of the High Court for other judges.
Supreme Court	1. Citizen of India.	1. Appointed by President after consultation (Article 124).
	2. Below 65 years of age.	2. Collegium system used for appointments.
	3. Judge of High Courts for 5+ years.	3. Maximum of 7 judges can be appointed (can increase as needed).
	4. Advocate in High Court for 10+ years.	4. Consult Chief Justice of India, other Supreme Court judges, and sometimes High Court judges.
	5. Distinguished jurist in the opinion of the President.	

Judicial Review

Judicial Review is when a court checks if a decision or action is lawful.

Judicial activism

Judicial activism is when the judiciary actively protects citizens' rights and the country's legal system.

Public Interest Litigation (PIL)

Public Interest Litigation (PIL) allows individuals to file cases in court to protect the public interest on issues like pollution, terrorism, and road safety.

While not formally defined in law, PIL is interpreted by judges to address matters affecting the public. It empowers citizens to seek justice through judicial activism. However, the petitioner must prove the case is genuinely in the public interest. Common issues under PIL include bonded labor, neglected children, wage exploitation, atrocities against women, and environmental pollution.

LokPal , Lok Ayukta

Aspect	Lokpal	Lokayukta
What It Is	A body that fights corruption at the national level.	A body that fights corruption at the state level.
How It Was Created	Made by the Lokpal and Lokayuktas Act in 2013.	Created by laws made by state governments.
Who It Covers	Looks into complaints against the Prime Minister, Ministers, Members of Parliament, and central government officials.	Looks into complaints against state-level politicians and officials.
Who Appoints It	Appointed by the President of India.	Appointed by the Governor of the state.
Who Is In It	Has one chairperson and up to 8 members, with half being judges.	Usually has one main person (Lokayukta) or a small team.
How Long They Serve	Serves for 5 years or until they are 70 years old.	Term varies by state rules.

Lokpal and Lok Ayuktas Act, 2013

The **Lokpal and Lokayuktas Act, 2013** is an anti-corruption law in India. It aims to set up the Lokpal at the national level and Lokayuktas in states to investigate corruption allegations against high-ranking public officials, including the Prime Minister, ministers, MPs, and Group A officials.

Key Features:

1. Lokpal at the Centre and Lokayuktas in states.
2. States must set up Lokayuktas within 365 days of the Act.
3. Lokpal will have a chairperson and up to 8 members, with 50% being judicial members.
4. Half of the Lokpal members must be from SC/ST/OBC, minorities, or women.
5. Selection committee includes the Prime Minister, Speaker, Chief Justice of India, and others.

State Executive

The State Executive consists of the Chief Minister, the Council of Ministers and the Governor.

Powers and Functions of the Governor

Category	Powers and Functions
Executive Powers	1. Executes state decisions. 2. Appoints Chief Minister, Ministers, Advocate General. 3. Recommends President's rule.
Legislative Powers	1. Can dissolve or summon the legislature. 2. Approves or returns bills. 3. Addresses legislature.
Financial Powers	1. Oversees state budget. 2. Controls money bills and Contingency Fund. 3. Forms Finance Commission.
Judicial Powers	1. Can pardon or reduce sentences. 2. Helps appoint judges. 3. Manages judicial appointments.

Powers and Functions of the Chief Minister

Category	Powers and Functions
In Relation to Council of Ministers	1. Recommends appointment of ministers. 2. Assigns or reshuffles portfolios. 3. Leads meetings and controls activities. 4. Can ask a minister to resign.
In Relation to Governor	1. Informs Governor about government decisions. 2. Provides advice for appointments (Advocate-General, PSC, etc.). 3. Reports administrative matters when asked.
In Relation to State Legislature	1. Advises Governor on summoning or dissolving the legislature. 2. Announces government policies in the House.
Other Functions	1. Chairs State Planning Board. 2. Vice-chairperson of Zonal Council. 3. Member of Inter-State and National Development Councils.

State Legislature

The State Legislature makes laws at the state level. It can be unicameral (Legislative Assembly) or bicameral (Legislative Assembly and Legislative Council). The **Legislative Assembly** creates laws, controls state finances, and oversees the executive. The **Legislative Council** is advisory and reviews laws. Both houses help elect the President and amend the Constitution in specific areas.

Functions of State Legislature

- It makes laws on state matters and can make laws on shared matters if they don't conflict with Parliament.
- It controls the Council of Ministers.
- It manages the state's finances.
- It has the power to change the constitution.
- It elects and can remove the Speaker and Deputy Speaker.

Functions of High Court and Subordinate Courts.

Court Type	Key Functio
High Court	**Original Jur** its city (e.g., fundamental
	Appellate Ju civil, crimina
	Court of Re punish conter
	Administrat rules, transfer
	Judicial Rev
	Certification
Subordinate Court	**Civil Courts** Civil Procedu
	Criminal C robbery) und Code.
	Grading: Co or crimes (cri